MODERNISUM TECHNOLOGIES (GOVT. OF INDIA MSME: UDYAM-UP-56-0049848)

MASTER SOFTWARE LICENSE, DATA PRIVACY & BILLING POLICY

Product: "School" ERP (`school.modernisum.com`) | **Parent Entity:** Modernisum (`modernisum.com`) | **Founder & Architect:** Shivank Kumar | **Regd. Office:** Near Water Tank, Vill. Dayalpur, Parikshitgarh, Meerut, UP – 250406

STATUTORY PREAMBLE & ELECTRONIC BINDING NOTICE: This Master Software License, Data Privacy, and Subscription Policy ("Agreement") is a legally binding electronic contract under **Section 10A of the Information Technology Act, 2000**, the **Digital Personal Data Protection (DPDP) Act, 2023**, and the **Indian Contract Act, 1872**, executed between **Modernisum Technologies**, represented by its Founder & Lead Architect **Mr. Shivank Kumar**, having its registered office at **Near Water Tank, Village Dayalpur, Parikshitgarh, Meerut, Uttar Pradesh – 250406** ("Licensor"), and the onboarding educational institution ("School" or "Data Fiduciary").

1. BRAND PHILOSOPHY & ZERO-KNOWLEDGE ARCHITECTURAL MODEL

Modernisum Technologies (derived from *"Modern" [Adhunik] + "Isum" [Unique]*) builds friction-eliminating enterprise software. Unlike centralized cloud ERPs that hoard sensitive student records on vendor servers, the **"School" ERP Suite** (`school.modernisum.com`) operates on a strict **Local-First, Zero-Knowledge, Zero-Ad Architecture**. Modernisum acts solely as a software tool creator and encrypted transit facilitator, holding 0% possession of or visibility into the School's student or staff database.

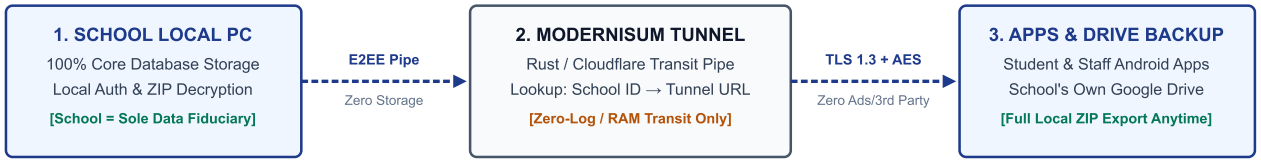


Figure 1.1: Modernisum Zero-Knowledge Flow — No student PII is ever stored on Modernisum servers or shared with third parties.

2. TECHNICAL DATA HANDLING & ZERO-THIRD-PARTY COMMITMENT

- **100% On-Premise Core Database:** All student, academic, attendance, HR, and fee records reside exclusively on the Principal's/Administrator's local desktop computer within the School premises. Modernisum is legally and technically bound never to store student PII on its servers.
- **Public Directory Metadata Only (Firebase):** Modernisum's central Firebase directory stores *only public marketing banner details* that the School voluntarily makes public (School Public Name, Banner, School ID Code, and active Tunnel Endpoint URL).
- **End-to-End Encrypted (E2EE) Tunnel Pipe:** Android apps (Student & Employee) connect to the School's desktop via a custom Rust / Cloudflare E2EE tunnel. After the user inputs the permanent School ID, authentication and API responses occur directly between the School's desktop and the mobile app. The tunnel remains strictly encrypted unless a high-level statutory government/court interception warrant is served upon the School.
- **Zero Ads & Zero Third-Party Data Monetization:** Modernisum's business model is 100% software subscription-based. We never display advertisements, embed third-party ad trackers, or sell/transfer any institutional or student data to third parties.

3. DATA ALLOCATION, ROLES & STATUTORY COMPLIANCE MATRIX

In full compliance with the **Digital Personal Data Protection Act, 2023 (DPDP Act)** and **IT Act, 2000**, the matrix below establishes the exact boundary of control between the Onboarding School and Modernisum Technologies:

DATA CATEGORY	PHYSICAL STORAGE LOCATION	ENCRYPTION & ACCESS CONTROL	LEGAL ROLE & LIABILITY
Student & Minor PII (Names, DOB, Under-13 Data, Marks, Attendance, Fees)	100% on School's Local Desktop Computer (SQLite/PostgreSQL)	Local OS Access + E2EE during Mobile App Transit	**School = Sole Data Fiduciary** (Modernisum has 0% access/liability)
Employee & Staff Data (Payroll, Attendance, Profiles, Login Credentials)	100% on School's Local Desktop Computer	Salted Password Hashes + Local Admin Control	**School = Sole Data Fiduciary** (Managed solely by School Principal)
Disaster Recovery Backups (Hourly Snapshots & Cloud Sync)	Local PC Partition + **School's Own Google Drive** (Decrypted ZIP Exportable)	Client-Side AES-256 Encryption + School Master Key	**School = Sole Custodian** (Modernisum never holds Master Key)
Public School Metadata (School ID, Public Banner, Tunnel URL, Active Count)	Modernisum Lookup Directory (Firebase Cloud)	TLS 1.3 Secured Public Directory & Billing Counter	**Modernisum = Routing Provider** (Contains zero personal student data)

4. PROTECTION OF MINORS' DATA (<13 / <18 YRS) & PARENTAL CONSENT MANDATE

- **Exclusive Responsibility of School for Parental Permission:** Under Section 9 of the DPDP Act, 2023, the School is the sole **"Data Fiduciary"**. Because the School collects student details at admission and stores them on its own local desktop computer, **obtaining verifiable written or digital permission/consent from the parents or lawful guardians of all students (especially children below 13 and 18 years of age) is 100% the mandatory legal responsibility of the School**.
- **Developer Indemnification on Consent:** Modernisum Technologies is strictly bound not to store any student data and relies entirely on the School's affirmative warranty that parental permission has been lawfully recorded prior to adding any child into the desktop software or issuing mobile login credentials.
- **High-Level Government Lawful Interception:** Modernisum maintains strict End-to-End Encryption across its tunnel at all times. Modernisum cannot decrypt transit payloads. Only upon presentation of a valid, high-level statutory order from a competent Government Authority or Court of Law under Section 69 of the IT Act, 2000 shall routing metadata be shared, while decrypted database inspection must be fulfilled directly by the School Principal from their local desktop.

5. DISASTER RECOVERY, HOURLY BACKUPS & FULL LOCAL ZIP PORTABILITY

CLIENT-SIDE BACKUP, MASTER KEY CUSTODY & ZERO DATA LOCK-IN GUARANTEE:
1. **Hourly Automated Snapshots & Google Drive Sync:** To protect against accidental deletion, OS reset, or hardware failure, the software creates hourly local snapshots and syncs an AES-256 encrypted backup directly to the **School's own Google Drive account** via OAuth Refresh Tokens.
2. **Master Recovery Key Custody:** A unique 16-digit cryptographic **Master Recovery Key** is generated locally on the School's computer during setup. Modernisum **DOES NOT** store this key on its servers. The School Principal must safeguard a printed copy of this key.
3. **Unconditional Local ZIP Export (Zero Vendor Lock-In):** The School is **never forcibly bound** to Modernisum's services. At any time—even if subscription billing expires—the School Admin can decrypt its local database and backup resources on its local PC and download/export them inside a standard **decrypted ZIP file**.

6. FINANCIAL POLICY, 1-MONTH FREE TRIAL & PER-STUDENT BILLING

Modernisum Technologies provides transparent, friction-free pricing tailored for Indian educational institutions, starting with a risk-free evaluation period and fair active-student billing:

BILLING PARAMETER	OFFICIAL COMMERCIAL POLICY	OPERATIONAL RULE & TAX TREATMENT
New School Free Trial	**1 Month (30 Days) 100% Free Trial**	Granted automatically to every newly onboarded school with full desktop and mobile app tunnel functionality.
Per-Student Usage Rate	**₹20 / Active Student / Month** (Equivalent to ₹240 / Student / Year)	Billed strictly on total `STATUS = ACTIVE` students in the local database (e.g., 100 students = ₹2,000/mo; 200 students = ₹4,000/mo).
Billing Cycles & Base Slab	**Monthly or Quarterly Advance** (Minimum Floor: ₹1,500–₹2,000/mo)	Quarterly cycle recommended (e.g., ₹6,000/quarter for 100 students or ₹12,000/quarter for 200 students) to avoid lump-sum burden.
GST Exemption Status	**0% GST (Currently GST Exempt)**	As a registered MSME startup operating below the statutory aggregate turnover threshold under the CGST Act, invoices are currently exempt from GST.

7. 7-TO-15 DAY GRACE PERIOD, NON-COERCIVE PAUSE & FREEDOM TO EXIT

- **Automated Active Student Counter:** On the 25th of each month, the software transmits only the integer count of `ACTIVE` students (excluding *Inactive*, *TC Issued*, or *Alumni* profiles) to calculate the upcoming invoice.
- **7 to 15 Calendar Days Grace Period:** Once a digital invoice (with integrated UPI QR Code / NEFT details) is issued, the School is granted a generous **7-day standard due window, extendable up to a maximum 15-day grace period** to clear payment.
- **Non-Destructive Read/Write Pause (No Data Hostage):** If an invoice remains unpaid past the 7–15 day grace period, Modernisum **does not sabotage or lock the School's ownership of its data**. Instead, the software gracefully pauses new active Read/Write operations and Cloud Tunnel mobile syncing. Crucially, the School is **never locked out of its data**—the Principal can still decrypt and export all local database resources and backups into a **local ZIP file** on their PC at any time. Thus, no School is ever held captive or legally/technically coerced into continuing the service.
- **No-Refund on Completed Cycles:** Subscription fees paid for an active cycle are non-refundable, though the School may discontinue future renewals at will.

8. LIMITATION OF LIABILITY, INDEMNIFICATION & MEERUT JURISDICTION

- **"AS-IS" Tool Provision:** Because mobile app connectivity relies on the School's desktop remaining online, Modernisum is not liable for interruptions caused by School power cuts, local internet failures, OS malware, or loss of the local Master Recovery Key.
- **Financial Liability Cap:** Under no circumstances shall Modernisum Technologies or its Founder (Mr. Shivank Kumar) be liable for any indirect or consequential damages. Total cumulative liability for any proven claim shall never exceed the **actual subscription fee paid by the School for the immediately preceding 1 (One) month**.
- **Grievance Redressal Officer (IT Rules & DPDP Compliance):** Name: **Mr. Shivank Kumar** | Designation: Founder & Grievance Officer, Modernisum Technologies | Address: Near Water Tank, Village Dayalpur, Parikshitgarh, Meerut, Uttar Pradesh – 250406 | Official Email: `contact@modernisum.com`.
- **Exclusive Jurisdiction of Meerut Courts:** This Agreement is governed by Indian Law. Any legal dispute, claim, or proceeding arising from the download or use of `school.modernisum.com` anywhere in India (including Chennai, Mumbai, Delhi, or Bengaluru) shall be subject to the **exclusive jurisdiction of the competent Courts at Meerut, Uttar Pradesh**.

9. WEBSITE (SCHOOL.MODERNISUM.COM) & INSTALLER CLICK-WRAP SCRIPT

Copy and embed the exact checkbox script below onto the download/registration screen of `school.modernisum.com` and your desktop installer to form a legally binding contract under **Section 10A of the IT Act, 2000**:

```
[CLICK-WRAP CHECKBOX SCRIPT FOR SCHOOL.MODERNISUM.COM & DESKTOP APP] [ ✓ ] I, as the Principal / Authorized Signatory of the registering School, have read and agree to the Modernisum Technologies (MSME: UDYAM-UP-56-0049848) Master Software License, Data Privacy, and Billing Policy. I explicitly confirm and agree that: 1. Our School is the sole "Data Fiduciary" under the DPDP Act 2023; 100% of student/staff data resides on our School's local PC, and obtaining parental permission for all students (including children under 13/18 years) is strictly our School's responsibility; 2. Modernisum stores zero student data, sends zero data to third parties/ads, and provides a 1-Month Free Trial followed by ₹20/Active Student/Month billing (GST Exempt); 3. After a 7–15 day billing grace period, active read/write & tunnel sync will pause, but our data is never locked—we can decrypt and export our local backup as a ZIP file anytime; 4. All legal disputes are subject exclusively to the Courts of Meerut, Uttar Pradesh. (Button disabled until ticked: [ Accept Agreement & Start 1-Month Free Trial ]) [FIREBASE AUDIT LOG JSON TO RECORD UPON CLICK-WRAP ACCEPTANCE] {
"licensor": "Modernisum Technologies (UDYAM-UP-56-0049848)", "product_domain": "school.modernisum.com", "school_id": "SCH_ID_AUTO", "authorized_email": "principal@school.edu.in", "policy_version": "v2026.2-MODERNISUM-FINAL", "clickwrap_accepted": true, "accepted_timestamp_ist": "2026-10-17T08:00:00+05:30", "client_ip_address": "Captured_Public_IP", "desktop_hardware_uuid": "SHA256_MACHINE_HASH" }
```

10. SUMMARY OF LEGAL PROTECTIONS BUILT INTO YOUR SOFTWARE

1. Zero-Ransom / Non-Coercive Pause

By pausing only software Read/Write & Tunnel while allowing local decrypted ZIP downloads during non-payment, no school can ever accuse Modernisum of data extortion or illegal withholding.

2. 100% Parental Consent Shift

Clause 4 legally binds the School Principal to collect parental consent on admission forms, shielding Shivank Kumar & Modernisum from Section 9 DPDP Act minor-data penalties.

3. Statutory GST Exemption Clarity

Clause 6 formally cites your MSME registration and CGST threshold exemption so school auditors accept your invoices without demanding a 15-digit GSTIN.

4. Home-Court Protection (Meerut)

Clause 8 locks exclusive legal jurisdiction to Meerut, UP (Pin: 250406), ensuring remote schools from Chennai or elsewhere cannot drag you to out-of-state courts.

11. OFFICIAL EXECUTION & INSTITUTIONAL SIGN-OFF BLOCK

FOR LICENSOR (TECHNOLOGY PROVIDER):

Entity: **Modernisum Technologies**
MSME Reg. No.: **UDYAM-UP-56-0049848**
Authorized By: **Mr. Shivank Kumar** (Founder)
Address: Near Water Tank, Vill. Dayalpur, Parikshitgarh, Meerut, UP – 250406
Web / Mail: `modernisum.com` | `contact@modernisum.com`

FOR LICENSEE (ONBOARDING SCHOOL):

Institution Name:
_____
Principal / Authorized Signatory: _____
School ID & City:
_____
Acceptance Mode: Digital Click-Wrap / Stamp
Date & Recorded IP:
_____